

Policy No. 11

Domestic and Family Violence Policy

Application

This policy applies to all Workers and Board Directors of [Organisation, fully spelled out and then abbreviated].

This policy applies to all Workers and Board Directors of [ORG] in all facets of their engagement, including, but not limited to, while Workers are in the workplace or off site, at work-related functions (including social functions and celebrations), in company vehicles, while on work-related trips and while attending work-related conferences.

Definitions

- “Board Director”** means a member of the board of [ORG].
- “Worker”** means all staff (full-time, part-time, casual, permanent or temporary), contract or commission workers and volunteers, vocational and work experience placements at [ORG].

The Policy

[ORG] recognises that:

- family and domestic violence is prevalent in the Australian community;
- employees of [ORG] may be affected by family and domestic violence;
- family and domestic violence can have a significant negative impact on those experiencing it, and it may affect attendance and performance at work.

[ORG] is committed to addressing family and domestic violence and supporting affected employees.

The purposes and aims of this policy are to:

- support the retention, safety and well-being of staff affected by family and domestic violence;
- detail the rights and responsibilities of employees experiencing family and domestic violence who choose to disclose their experience to another employee, the duty of care; responsibilities of [ORG] and the range of ways employees can seek and receive assistance as a result of experiencing family and domestic violence;
- ensure when it comes to the attention of [ORG], that an employee who perpetrates family and domestic violence will be held accountable.

Definitions

[ORG] defines family and domestic violence as any violent, threatening or other abusive behaviour by a person against a member of the person's family or household (current or former).

This definition includes behaviour that:

- is physically or sexually abusive
- is emotionally or psychologically abusive
- is economically abusive
- is threatening
- is coercive

- in any other way controls or dominates the family or household member and causes that person to feel fear for their safety or wellbeing or that of another person
- causes a child to hear or witness, or otherwise be exposed to the effects of, such behaviour

Entitlement to Leave

This section should be read in conjunction with [ORG]'s Leave Policy in the Employee Handbook which provides further information and outlines the procedure for taking leave.

The Fair Work Act 2009 provides for family and domestic violence leave. All employees (including casual employees) are entitled to ten (10) days paid of domestic and family violence leave per year to deal with family and domestic violence. It may be taken in a continuous 5-day period or separate periods of one or more days. This type of leave is available in full on commencement of employment with [ORG] but does not accumulate from year to year.

Family and domestic violence leave may be taken for the purposes of:

- attending medical/counselling appointments
- attending legal proceedings or seeking legal advice
- seeking safe housing
- organising alternate care or education arrangements for children
- rebuilding support networks for children, family or others
- any other activity relating to managing issues of family or domestic violence

While notice is not strictly required prior to taking the leave, an employee should notify their manager as soon as reasonably practicable of their intention to take or remain leave for this purpose. Evidence may be required in accordance with [ORG]'s Leave Policy.

Flexible Work Arrangements

Under the Fair Work Act 2009, an employee may also request flexible working arrangements, if they experience family and domestic violence. This may also be extended to employees if they are required to provide care and support to a member of their immediate family or a member of their household who is experiencing, or is affected by, family and domestic violence. These changes may include, but are not limited to, changes to hours of work, varying start and finishing times, temporary change in duties, or temporary changes to work location. Such requests can only be refused on reasonable business grounds.

Eligibility requirements to request flexible working arrangements

Full-time and part-time employees must have been continuously employed by [ORG] for at least 12 months before making their request. Casual employees must have been employed by [ORG] on a regular and systematic basis for at least 12 months before making their request and have a reasonable expectation of continuing employment with [ORG] on a regular and systematic basis moving forward. [ORG] will also reasonably consider requests from employees who have not met the eligibility requirement under the Act.

Domestic Violence Contact Person and Individual Support

[ORG] will nominate a contact person to provide support for employees experiencing family and domestic violence and notify employees of the name of the nominated contact person. The contact person has specialist training in how to handle family and domestic violence issues sensitively, and who can provide confidential support and information for employees experiencing family and

domestic violence, and for managers or other employees who are concerned about family and domestic violence. The contact will be in possession of appropriate resources and referral information. The details of the Family and Domestic Violence Contact Person are: [ceo@\[ORG\].org.au](mailto:ceo@[ORG].org.au)

[ORG] has procedures in place for employees who wish to discuss any issues relating to family and domestic violence. An employee experiencing family and domestic violence may raise the issue with the nominated contact person or their manager. Where requested by an employee, the contact person will liaise with the employee's supervisor on the employee's behalf and will make a recommendation on the most appropriate form of support.

[ORG] will take immediate action to act on any potentially dangerous or threatening instances of family and domestic violence that occur within the workplace.

Roles and responsibilities

The level of assistance you can provide will depend on your role and relationship to the affected person:

Work colleague

- Listens
- Checks immediate safety
- Encourages employee to make contact with the Family and Domestic Violence Contact Person

Manager

- Follows above protocols for 'work colleagues'
- If requested, liaises with the Family and Domestic Violence Contact Person
- Provides ongoing support including workplace adjustment and leave where reasonably necessary

Director

- At their discretion approves an extended period of leave

Confidentiality

[ORG] will treat disclosures of family and domestic violence, so far as practicable, as confidential. However, there may need to be disclosure particular information where, for example, [ORG] deems it necessary to disclose information to protect an individual's safety.

Employees should also treat disclosures of family and domestic violence, so far as practicable, as confidential. However, there may be situations where it will be necessary to disclose particular information. If an employee is in doubt as to how to deal with a particular situation, they should have a conversation with their Manager without initially disclosing the identity of the people involved.

No Adverse Action

[ORG] will not take adverse action against an employee because of their disclosure of, experience of, or perceived experience of, family and domestic violence. [ORG] will not discriminate against a victim of family and domestic violence in hiring, staffing, or other terms, conditions, or privileges of employment.

Perpetrators of Domestic and Family Violence

[ORG] does not tolerate family and domestic violence and prohibits family and domestic violence being perpetrated in, or from, the workplace. Any employee who threatens, harasses or abuses a family or household member at, or from, the workplace may be subject to disciplinary action in accordance with [ORG]'s Discipline and Termination Policy. This may also be a criminal offence.

If an employee is involved in perpetrating family and domestic violence outside of the workplace and this affects their ability to perform their role, or brings the reputation of [ORG] into disrepute, the employee may be subject to disciplinary action in accordance with [ORG]'s Discipline and Termination Policy. This may also be a criminal offence.

If an employee is observed, or suspected of, perpetrating family and domestic violence in, or from, the workplace, employees and managers have a responsibility to report the conduct to [ORG].

Disciplinary Action

Disciplinary action may be taken by [ORG] against any Worker or Board Director found to have breached this policy. Action taken will be appropriate to the breach and may result in the termination of the Worker's employment or the Board Director's appointment.

Related Policies

- Employee Handbook
- Policy 01 – Employee Code of Conduct
- Procedure 01 – Disciplinary and Termination Policy

Review

Reviewing and approving this policy			
Frequency	Person responsible	Approval	Approved
Every 2 years	Chief Executive Officer	Chief Executive Officer	